

THE COMPANIES ACT 2006
COMPANY LIMITED BY SHARES
COPY WRITTEN RESOLUTION
of
AXXSYS LIMITED
("Company")

PASSED ON 13th August 2009

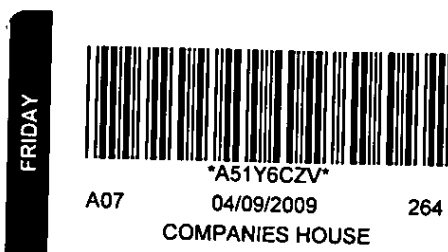
In accordance with the written resolution procedure in chapter 2 of part 13 of the Companies Act 2006, the following resolution was duly passed on 13th August 2009 as a special resolution as indicated below:

SPECIAL RESOLUTION

That, the terms of the proposed contract ("**Own Share Purchase Contract**") for the purchase by the Company from Paul Dodson of 278 A ordinary shares of £0.10 each in the capital of the Company for the aggregate sum of £100,000 (a copy of which is attached to this resolution and initialled for the purposes of identification only by a director), be and are hereby approved, and that the Company be and is hereby authorised to enter into the Own Share Purchase Contract.



Director



DATED

14th August 2009

(1) PAUL DODSON

- and -

(2) AXSYS LIMITED

- and -

(3) OTHERS

**AGREEMENT
FOR PURCHASE OF
OWN SHARES BY
AXSYS LIMITED**

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AXSYS LIMITED

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THIS AGREEMENT is made on 2009

BETWEEN:

- (1) **PAUL DODSON** of Argyll House, 57 Hare Lane, Claygate, Surrey KT10 0QX ("**Vendor**");
- (2) **AXXSYS LIMITED**, trading as Axxsys Consulting Limited (company number 04967647) whose registered office is at Token House, 11/12 Tokenhouse Yard, London EC2R 7AS ("**Company**");
- (3) **NICOLAS CHARLES JACQUES KOECHLIN** of 2 Pleasant View, Barden Road, Speldhurst, Kent, TN3 0QH ("**NK**");
- (4) **STEPHEN McDERMOTT** of 71B Oakley Road, London N1 3LW ("**SM**"); and
- (5) **PHILLIP RITCHIE** of 6a Coverton Road, London, SW17 0QL ("**PR**").

BACKGROUND

- A. The Vendor is the registered holder and beneficial owner of the Sale Shares. The Company wishes to purchase and the Vendor wishes to sell the Sale Shares on the terms of this agreement.
- B. The terms of this agreement were authorised by special written resolution of the Company passed prior to the date of this agreement in accordance with the procedure in chapter 2 of part 13 of the Companies Act 2006. An unexecuted copy of this agreement was sent or submitted to every eligible member at or before the time at which such special written resolution was sent or submitted to them.
- C. Each member of the Company has waived any right he, she or it may have under the articles of association of the Company or otherwise to have any of the Sale Shares offered to him, her or it for purchase prior to them being purchased by the Company under this agreement.
- D. Each member of the Company has expressly consented to the purchase of the Sale Shares by the Company for all purposes.
- E. NK, SM and PR (together the "**Remaining Shareholders**" and each a "**Remaining Shareholder**") are parties to this agreement for the purposes of clause 7.5 only and for no other purpose.

IT IS AGREED:



1. DEFINITIONS AND INTERPRETATION

1.1 In this agreement:

"Encumbrance" means any charge, lien, equity, third party right, option, right of pre-emption or any other encumbrance, priority or security interest whatever; and

"Sale Shares" means 278 A ordinary shares of £0.10 each in the capital of the Company beneficially owned by and registered in the name of the Vendor.

1.2 In this agreement where the context admits:

1.2.1 words and phrases which are defined in the Companies Act 1985 (as amended) or the Companies Act 2006 (as in force on the date of this agreement) have the same meanings in this agreement;

1.2.2 sections 5, 6, 8 and 9 of schedule 1 to the Interpretation Act 1978 apply in the same way as they do to statutes;

1.2.3 reference to a statutory provision includes reference to:

1.2.3.1 any order, regulation, statutory instrument or other subsidiary legislation at any time made under it for the time being in force (whenever made);

1.2.3.2 any modification, amendment, consolidation, re-enactment or replacement of it or provision of which it is a modification, amendment, consolidation, re-enactment or replacement;

1.2.4 reference to the parties to this agreement includes their respective successors in title and personal representatives; and

1.2.5 the index and headings are for ease of reference only and shall not affect the construction or interpretation of this agreement.

2. SALE AND PURCHASE

2.1 The Vendor shall sell with full title guarantee, and the Company shall purchase, the Sale Shares free from Encumbrances for the sum of £100,000.

2.2 The Company shall pay the said sum out of its distributable profits.

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3. VENDOR'S WARRANTY

3.1 The Vendor warrants and represents that:

3.1.1 he is the registered holder and beneficial owner of the Sale Shares;

3.1.2 the Sale Shares are fully paid up;

3.1.3 the Sale Shares are free from all Encumbrances; and

3.1.4 there is no litigation, arbitration, prosecution, administrative or other legal proceedings or dispute in evidence or threatened against the Vendor in respect of the Sale Shares or the Vendor's entitlement to dispose of them and so far as the Vendor is aware, there are no circumstances which might give rise to any such proceedings or dispute.

3.2 The Vendor undertakes to the Company that pending completion of the sale and purchase of the Sale Shares, he will not dispose of any interest in any of them or any right attaching to them or create or allow to be created any Encumbrance over any of them or agree (whether subject to any condition precedent or conditions subsequent or otherwise) to do any of such things.

4. COMPLETION

4.1 Completion of the sale and purchase of the Sale Shares shall take place immediately after the signing of this agreement when the Vendor and the Company shall cause the following matters to be effected in the following order:

4.1.1 the Vendor shall deliver to the Company a duly executed stock transfer form sufficient in every respect to transfer to the Company the legal title to the Sale Shares together with the share certificate for the Sale Shares (or an express indemnity in a form and given by a person satisfactory to the Company in respect of any share certificate found to be missing); and

4.1.2 the Company shall pay the purchase price for the Sale Shares by transfer of funds through a UK clearing bank to an account nominated by the Vendor.

4.2 If any of the provisions of clause 4.1 are not complied with on the date fixed for completion, the Vendor or the Company (as the case may be) not in default may (without prejudice to his or its other rights and remedies):

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- 4.2.1 defer completion to a date not more than 28 days after such date;
 - 4.2.2 proceed to completion so far as practicable; or
 - 4.2.3 rescind this agreement.
- 4.3 Neither the Vendor nor the Company shall be obliged to complete the sale and purchase of the Sale Shares unless the sale and purchase of all the Sale Shares is completed simultaneously, but completion of the sale and purchase of some of the Sale Shares will not affect the rights of the Vendor or the Company with respect to the others.

5. POST COMPLETION

- 5.1 With effect from completion of the sale and purchase of any of the Sale Shares, the Vendor shall, for so long as it remains the registered holder of such Sale Shares, hold them as bare trustee for the Company.
- 5.2 As soon as reasonably practicable after completion of the sale and purchase of any Sale Shares, the Company shall arrange at its cost for the stamping and filing of a Form G169 with the Registrar of Companies and the Company shall alter its register of members so as to show that:
- 5.2.1 the Vendor has transferred such Sale Shares to the Company and has ceased to hold those shares; and
 - 5.2.2 such Sale Shares have been cancelled.

6. TAX CLEARANCES

- 6.1 The Company prepared an application for clearance in the name of the Company pursuant to section 225 of the Income and Corporation Taxes Act 1988 ("ICTA"), requesting HM Revenue and Customs ("HMRC") to confirm that section 219 of ICTA applies to the purchase of the Sale Shares by the Company pursuant to this agreement ("Tax Clearance") and submitted the Tax Clearance to HMRC, in each case, prior to the date of this agreement.
- 6.2 The Company shall send to the Vendor copies of any correspondence received from HMRC in relation the Tax Clearance ("HMRC Correspondence"). The Vendor may submit to the Company a draft of any correspondence that the Vendor proposes the Company send to HMRC in response to the HMRC Correspondence ("Draft

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Correspondence") and the Company shall, after making such amendments to the Draft Correspondence as it shall deem to be reasonably necessary and after being satisfied (at its absolute discretion) that the contents of the Draft Correspondence are factually accurate and not misleading, finalise the Draft Correspondence ("**Final Correspondence**") and submit the Final Correspondence to HMRC.

- 6.3 The Company shall provide reasonable access to the Vendor and his professional advisers to all accounting and tax records of the Company necessary in order to enable the Vendor or his professional advisers to prepare the Draft Correspondence.
- 6.4 The Vendor shall indemnify and secure the Company to the reasonable satisfaction of the Company against any costs and expenses which may be incurred by the Company as a consequence of any action taken in accordance with this clause 6.
- 6.5 Unless the Company does not receive a response from the Vendor within 14 days following the receipt by the Vendor of the HMRC Correspondence (in which case, the Company shall be entitled to deal with all matters pertaining to the Tax Clearance as it deems fit), the Company shall not agree to the settlement or compromise of any determination by HMRC of the Tax Clearance without the written consent of the Vendor (such consent not to be unreasonably withheld or delayed).
- 6.6 The Company shall not, apart from dealing with the HMRC Correspondence as envisaged by clause 6.2, be obliged to take any action to appeal against any determination of HMRC in relation to the Tax Clearance.

7. MISCELLANEOUS

- 7.1 This agreement shall be binding upon each party's successors in title. This agreement shall be non-assignable.
- 7.2 This agreement shall remain in effect notwithstanding that completion of the sale and purchase of the Sale Shares shall have taken place.
- 7.3 This agreement may be executed in any number of counterparts, and by the parties on separate counterparts, but shall not be effective until each party has executed at least one counterpart. Each counterpart shall constitute an original of this agreement, but all the counterparts shall together constitute one and the same agreement.
- 7.4 A person who is not party to this agreement shall have no right under the Contracts (Rights of Third Parties) Act 1999 to enforce any term of this agreement. This clause

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does not affect any right or remedy of any person which exists or is available otherwise than pursuant to that Act.

7.5 The Vendor is hereby unconditionally released from all rights, liabilities and obligations under the shareholders' agreement dated 12 February 2008 made between AXXSYS LIMITED, PAUL DODSON, NICOLAS CHARLES JACQUES KOEHLIN and STEPHEN McDERMOTT (the "**Shareholders Agreement**") and shall immediately cease to be a party to the Shareholders Agreement. Each of the Remaining Shareholders hereby confirms that he does not have any claim against the Vendor under the Shareholders Agreement and the Vendor confirms that he does not have any claim against any of the Remaining Shareholders under the Shareholders Agreement.

7.6 This agreement shall be governed by, construed and interpreted in all respects in accordance with the law of England and the parties to this agreement submit to the exclusive jurisdiction of the English courts.

Signed as a deed, but not delivered until the)
first date specified on page 1 by PAUL)
DODSON in the presence of:

Signature

Witness signature

Witness name
(block capitals)

Witness address

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Executed as a deed, but not delivered until the)
first date specified on page 1 by **AXXSYS**)
LIMITED by a director in the presence of a
witness:

Signature

Name
(block capitals) **Director**

Witness signature

Witness name
(block capitals)

Witness address

.....

Signed as a deed, but not delivered until the)
first date specified on page 1 by **NICOLAS**)
CHARLES JACQUES KOECHLIN in the
presence of:

Signature

Witness signature

Witness name
(block capitals)

Witness address

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Signed as a deed, but not delivered until the)
first date specified on page 1 by **STEPHEN**)
McDERMOTT in the presence of:

Signature

Witness signature

Witness name
(block capitals)

Witness address
.....

Signed as a deed, but not delivered until the)
first date specified on page 1 by **PHILLIP**)
RITCHIE in the presence of:

Signature

Witness signature

Witness name
(block capitals)

Witness address
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